*THE REPUBLIC OF ICENIA*

# City Development Act

This document, last compiled by **Creepily**,
includes all legislation enacted and amended
up to and including the **Icenia Capital Territory Act**
passed on **4th November 2025**.

# City Development Act

## Article 1: Civilian Building Approval Process

To begin the construction of a new civilian building within the Icenia Capital Territory (hereafter 'Icenia City'), the following process must be followed:

1. The prospective property owner must select a vacant plot, derelict building, or un-demarcated piece of land that they are interested in and submit an application in #building-approvals - see Index I.

2. The Secretary of the Interior or a member the City Council will then review the application and may then ask additional questions or impose stipulations. At this point, the Secretary of the Interior or a member the City Council may contact any relevant stakeholders and request their opinions.

3. Finally, the Secretary of the Interior or a member the City Council will either approve or deny the building application. If the application is approved, construction may begin immediately. If the build is a shop, see Article 4, if the build is an apartment or skyscraper, see Article 5.

*4.* The City Council may override the decision of the Secretary of the Interior regarding the approval or denial of an application within Icenia City, through a simple majority vote of larger than fifty percent (>50%).

    *a.* The Secretary of the Interior may reject the City Council's override on the following grounds:

        *i.* Conflict with Federal/Local Law: The override would violate provisions of national or local legislation, as supported by legal precedent or statutory authority.

        *ii.* Jurisdictional Overreach: The override exceeds the City Council's delegated authority under federal or local law, including cases where jurisdiction has been explicitly retained by the Secretary of the Interior.

            1. In the case where the City Council overrides the decision of the Secretary of the Interior in a situation where both parties are legally required to come to a consensus, the Secretary of the Interior may reject the City Council's override.

    b. After such rejection of the City Council's veto, both parties are to come to a joint resolution, taking into account all related legislation.

*5.* If the Secretary of the Interior and the City Council are unable to reach consensus on a matter requiring joint resolution, the dispute shall be referred to the Senate or the President. Final adjudication shall occur through the passage of a Senate Bill.

## Article 2: Civilian Building Standards

Plans for new builds, or substantial changes to the exterior of an existing build must adhere to the following standards to be approved:

1. **Location and Dimensions**

    a. Must conform to zoning regulations, if applicable.

    b. Must remain within the bounds of the assigned plot.

    c. May not exceed height of y:170, except for antennas or decorative fixtures. A City Council majority vote of larger than fifty percent (50%) with explicit Secretary of the Interior approval may bypass this requirement.

    d. May not extend below y:16 without explicit approval from the Secretary of Defense.

    e. May not be built in or extend more than 10 blocks into the body of water. A City Council majority vote of larger than fifty percent (50%) with explicit Secretary of the Interior approval may bypass this requirement.

    f. All private snitches must be placed within the bounds of the property or plot.

2. **Obstructions**

    a. Must not obstruct or impede upon the function of defensive infrastructure without explicit permission from the Secretary of Defense.

    b. Must not obstruct or impede upon existing public works projects, like railways or roads without explicit permission from the City Council and the Secretary of the Interior.

    c. Must not infringe on another's property as defined in Article VII (a) of the Constitution.

3. **Visuals**

    a. Buildings must not be constructed in a manner that is intentionally or unintentionally offensive or unsightly to the general population. A structure may be deemed in violation if it meets one or more of the following criteria, as determined by the City Council or a designated committee:

        i. Visual Disharmony: Appearance significantly deviates from prevailing architectural character, aesthetic standards or cultural norms, including neglect, decay, or garish design.

b. Must not be “floating.” All building foundations should visibly touch the ground.

c. Must use no less than three types of blocks in reasonable quantities in its block pallet.

d. Excessive terrain flattening, “dirt bubbling,” or the construction of unrealistic or unsightly terrain is disallowed, unless given special permission by the City Council and the Secretary of the Interior.

## Article 3: Procedure for Reclassification under Civilian Building Standards

A building or building application may be classified or reclassified as violating or abiding by the Civilian Public Standards through the following procedure:

1. A formal petition may be submitted by one or more Citizens of Icenia City (as defined by Section 4 of the City Council Voting Act) or by the Secretary of the Interior via the designated civic Discord forum.

2. Upon receipt of a valid petition:

    a. The City Council shall convene a public hearing;

    b. The building owner shall be given reasonable notice and an opportunity to respond;

    c. The Council shall consider cultural, historical, and aesthetic factors relevant to the Civilian Public Standards;

    d. A classification vote shall be held. A building shall be classified as violating Civilian Public Standards if a majority of more than fifty percent (>50%) of Council members vote in favor.

3. Any classification decision may be appealed by the building owner, any citizen of Icenia City who participated in the original public hearing, or the Secretary of the Interior. Appeals shall be reviewed by the national court system, subject to applicable judicial procedures and standards.

4. After a classification decision, the building owner and petitioners may engage in a compromise process to address concerns raised during the hearing.

    a. If substantive changes are made to the building or application, a reclassification petition may be submitted.

    b. The Council shall determine whether the changes are sufficient to warrant reconsideration.

    c. If deemed sufficient, the reclassification process shall follow the same procedure as the initial classification.

5. No petition for classification or reclassification shall be accepted for a building or application that has already undergone a classification decision, unless the petition demonstrates **substantial and material changes** to the building, its application, or its surrounding context.

    a. The Council shall have discretion to reject petitions that are repetitive, insubstantial, or intended to circumvent prior decisions.

# Article 4: Procedural Standards for Municipal Eminent Domain

1. Municipal eminent domain is hereby established as an independent authority of Icenia City. It shall conform to the constitutional conditions and definitions of eminent domain, **except where modified by this Act**, and its exercise shall be subject solely to the procedures herein, rather than Senate approval.

2. **Inheritance of Constitutional Safeguards:**
   Municipal eminent domain shall inherit all substantive conditions, definitions, and safeguards applicable to eminent domain as set forth in the Constitution of the Third Republic of Icenia, including requirements of public interest, proportionality, exhaustion of alternatives, and due process protections.

3. **Limitations and Safeguards:**
   The authority of eminent domain shall be exercised sparingly and only as a last resort, and shall be subject to the following safeguards:

    1. Exhaustion of Alternatives: All reasonable alternatives—including negotiation, voluntary transfer, and administrative remedies—must be exhausted and documented prior to initiating eminent domain;

    2. Public Interest Requirement: The proposed use of the property must serve a clear and compelling public interest, such as critical infrastructure, public safety, or constitutional obligations;

    3. Proportionality and Minimal Invasiveness: The action must be proportionate and minimally invasive, affecting only the property necessary to achieve the public objective;

    4. Due Process Protections: The affected party must be given adequate notice, opportunity to respond, and access to appeal procedures.

4. **Initiation of Proceedings:**
   A proposal to exercise municipal eminent domain may only be initiated by either:

    a. The Secretary of the Interior, acting under municipal jurisdiction; or

    b. A member of the City Council, acting in their official capacity

5. **Approval Requirement**:
   No proposal for municipal eminent domain shall take effect unless approved by a supermajority vote of at least seventy-five percent (≥75%) of the City Council.

6. **Enhanced Procedural Standards**:

    a. Affected parties must receive formal written notice, including the proposed use, justification, and timeline;

    b. A public hearing must be held prior to any City Council vote, allowing for community input and owner response;

    c. The Council must document all exhausted alternatives and demonstrate the necessity of the action;

    d. The final resolution must include:

        i. A statement of public interest;

        ii. A map or description of the affected property;

        iii. A record of the vote and public hearing; and

        iv. A copy of the written justification submitted for public record.

7. **Senate Veto:**
   The Senate may, through a Senate Motion, nullify any municipal eminent domain resolution.

    a. This veto power may be exercised at any time from the commencement of the public hearing until within seven (7) days after the resolution has been entered into the public record.

    b. A valid Senate veto shall immediately halt the eminent domain process and render the resolution void, unless reinitiated under separate authority.

# Article 5: Dereliction

1. Dereliction within Icenia City shall inherit and uphold the procedures established in the Constitution of Icenia, including: Standard Dereliction, Shop Dereliction, Expedited Dereliction, and Construction Site Dereliction, as defined in Section VII(b) of the Constitution, specifically:

    a. The requirement for public signage, notification, and thread creation;

    b. The authority of the Secretary of the Interior to deny or condition dereliction actions;

    c. The rights of property owners to contest dereliction through removal of signage and public response.

    These procedures shall apply to all private property within Icenia City unless explicitly modified by local law.

2. Property may be derelicted if it is formally classified as violating the Civilian Building Standards under Article 3 of this Act. Such dereliction may proceed only after:

a. A valid classification vote by the City Council;

b. Completion of the appeal period or resolution of any appeals;

c. Exhaustion of compromise or reclassification procedures.

Dereliction under this section shall follow the same signage, notification, and contestation process as Standard Dereliction, unless otherwise specified by ordinance.

3. Dereliction actions may be enforced by:

    a. The City Council;

    b. The Secretary of the Interior, acting under municipal authority under the authority of the City Council;

    c. Officers designated by the City Council as specified explicitly in local law.

4. Any dereliction initiated by the Secretary of the Interior or by officers designated by the City Council shall be subject to veto by the City Council, issued through a formal resolution through a simple majority vote of more than fifty percent (>50%) within seven (7) days of public record. A valid veto shall immediately halt the dereliction process and render the action void.

    a. This veto authority shall not apply to dereliction actions initiated by the Secretary of the Interior in response to urgent security needs, as defined in Section VII(b) of the Constitution of Icenia. In such cases:

        i. The Secretary must explicitly state that the dereliction is being conducted under the urgent security exemption;

        ii. The justification must be included in the dereliction documentation and public record;

        iii. The City Council shall retain the right to request post-action review or clarification, but may not veto the action retroactively.

    *b.* The Secretary of the Interior may reject the City Council's override on the following grounds:

        *i.* Conflict with Federal/Local Law: The override would violate provisions of national or local legislation, as supported by legal precedent or statutory authority.

        *ii.* Jurisdictional Overreach: The override exceeds the City Council's delegated authority under federal or local law, including cases where jurisdiction has been explicitly retained by the Secretary of the Interior.

            1. In the case where the City Council overrides the decision of the Secretary of the Interior in a situation where both parties are legally required to come to a consensus, the Secretary of the Interior may reject the City Council's override.

c. After such rejection of the City Council's veto, both parties are to come to a joint resolution, taking into account all related legislation.

*d.* If the Secretary of the Interior and the City Council are unable to reach consensus on a matter requiring joint resolution, the dispute shall be referred to the Senate or the President. Final adjudication shall occur through the passage of a Senate Bill.

5. If a dereliction action is vetoed by the City Council, any future attempt to derelict the same property shall be treated as a new dereliction case. It must:

    a. Be initiated with a new sign and date;

    b. Include a new public thread and justification;

    c. Comply with all procedural requirements as if no prior attempt had occurred.

    d. Be based on **substantially different grounds** than the previously vetoed action.

    No dereliction may proceed on the basis of a previously vetoed action.

6. The procedures and enforcement powers outlined in this Article may be modified, restricted, or expanded by local law for specific zones or property types. Such exceptions must be:

    a. Explicitly defined in the relevant ordinance or act;

    b. Publicly disclosed in the City Council legislative record;

    c. Consistent with constitutional safeguards and subject to judicial review.

    This provision allows future zoning laws to establish stricter/relaxed protections or rigorous/streamlined dereliction standards where appropriate.

## Article 6: Shop Starter Fund:

1. A subsidy of 15d and 10 emerald blocks will be paid **by the Federal Treasury** to new shopkeepers opening a business in Icenia City, which meets the following requirements:

    a. Clearly visible advertising from the exterior of the building through signage or banners.

    b. Competitive pricing on par with similar products sold in other metropolises such as Pavia and Yoahtl.

    c. Multiple products offered for sale with sufficient quantities stocked.

    d. Once the shop is ready for customers, the shop owner must advertise their shop in either the Icenia Discord, CivMC Discord, or the CivMC subreddit.

2. The subsidy will be paid half upfront and half two weeks after the completion of the shop in question, through the Federal Treasury. The shop owner will be immediately opted into the program when filling out the building application - see Index II.

## Article 7: Other Delegations to the Secretary of the Interior

The Secretary of the Interior shall be delegated of these responsibilities in addition to others explicitly mentioned in local law:

1. Maintaining and improving public factory rooms;

2. Maintaining farms.

The Secretary of the Interior shall operate under municipal jurisdiction under the authority of the City Council in such matters, unless explicitly clarified or overridden in federal/local law.